

Master Design Services Agreement

Ongoing design services agreement for future work between Brandon Fonville Creative Studio and Client.

Designer	Client
Brandon Fonville Brandon Fonville Creative Studio Raleigh, North Carolina, United States hello@brandonfonville.com https://brandonfonville.com	Blue Collar Millionaire / Temperature Pros LLC (confirm exact legal entity) _____ _____
Agreement #	BF-MSA-2026-001
Effective date	_____

Recommended use: have Client sign this once before any new ongoing work. Then use a Statement of Work for each separate project.

1. Services and relationship

Designer will provide creative design services to Client under this Master Design Services Agreement. Services may include logo design, branding, product design, apparel graphics, website design, marketing graphics, production preparation, creative direction, and related support.

Each project, task, trademark support request, file request, or add-on must be approved in writing before work begins. Approval by email, text message, signed estimate, paid invoice, or written confirmation is acceptable.

Designer is an independent contractor and not an employee, partner, or agent of Client.

2. Separate scopes and simultaneous projects

Each project, deliverable, invoice, and service scope is independent unless the parties expressly combine them in writing.

Payment for completed work is due according to its own invoice terms and is not dependent on completion, approval, or delivery of any other active, future, or unrelated project.

Questions, revisions, or disputes related to one project or agreement do not suspend or delay payment obligations for another approved service or completed invoice.

When multiple projects are active at the same time, each project maintains its own scope, timeline, invoice, approval process, and payment obligation unless otherwise agreed in writing.

3. Statements of work and change orders

Project-specific details will be described in a Statement of Work, estimate, invoice, written message, or other written approval describing scope, deliverables, timeline, revision limits, and price.

Any work outside the approved scope requires a change order or written approval and may require an additional fee and timeline extension.

Designer may decline or pause out-of-scope requests until pricing, timeline, and deliverables are confirmed in writing.

4. Payment terms and overdue balances

Unless an invoice or SOW states otherwise, a deposit may be required before work begins and the remaining balance is due before final files, launches, transfers, or source files are released.

Invoices are due on the date stated on the invoice. If no date is listed, payment is due upon receipt.

If any invoice becomes overdue, Designer may pause all active work, revisions, meetings, file delivery, source file release, trademark support, website updates, or new project starts until the overdue balance is paid in full.

Late fees may be charged as stated on the invoice, SOW, or written approval. Client remains responsible for all undisputed amounts when due.

5. Client responsibilities and feedback

Client will provide timely feedback, content, references, approvals, account access, and materials needed for Designer to complete the work.

Client confirms it has the right to use all materials supplied to Designer, including photos, logos, copy, trademarks, fonts, and other brand assets.

Delays caused by missing feedback, missing content, account access issues, or late approvals may extend project timelines without penalty to Designer.

6. Revisions

Included revision rounds are limited to the amount stated in the SOW, invoice, estimate, or written approval.

A revision means a round of consolidated feedback applied to the current approved direction. A new concept, new deliverable, new format, or major direction change is additional scope.

Additional revisions may be billed separately at the rate stated in the SOW or invoice, or at a mutually agreed fee.

7. Ownership, final files, and source files

Ownership and usage rights for final approved work transfer only after Designer receives payment in full for the applicable project or deliverable.

Until payment is received in full, Designer retains ownership of all work product, drafts, concepts, files, and deliverables.

Unless a SOW states otherwise, final exports such as PNG, JPEG, PDF, SVG, or production-ready files are included as applicable to the project.

Editable/source files, including layered Photoshop files, Adobe Illustrator files, Figma files, working templates, raw files, and unused concepts, are not included unless purchased separately or expressly included in writing.

For logo source file delivery, the default source file package fee is \$100 unless a SOW or invoice states another amount.

8. Trademarking and legal filings

Trademarking, filing support, application coordination, and related administrative services are separate scopes from logo design, ownership transfer, and source file delivery unless expressly combined in writing.

Designer is not a law firm and does not provide legal advice, trademark clearance opinions, registration guarantees, or legal representation.

Government fees, filing fees, attorney fees, and trademark-related service fees are payable according to their own invoice terms and are not dependent on separate design agreement revisions unless agreed in writing.

9. Portfolio rights and confidentiality

Designer may display completed work, identify Client, and describe the project in Designer portfolio, website, social media, proposals, and promotional materials unless the parties agree otherwise in writing.

Either party may request confidentiality for sensitive non-public business information. Confidentiality obligations do not prevent Designer from enforcing payment rights or maintaining internal business records.

10. Termination

Either party may terminate an active project for material breach if the breach is not cured within 10 business days after written notice.

If a project is terminated, Client must pay for all work performed, expenses incurred, and approved third-party costs through the termination date. No rights transfer for unpaid deliverables.

Designer may terminate or decline future work if payment history, communication, scope changes, or business practices make continuation impractical.

11. Liability and warranties

Designer will perform services in a professional manner and warrants that final original work created by Designer will not knowingly infringe third-party rights.

Designer is not responsible for client-supplied materials, legal compliance, trademark availability, printing results, manufacturing outcomes, platform outages, or third-party vendor decisions unless separately contracted.

To the maximum extent allowed by law, Designer liability is limited to fees paid for the specific project giving rise to the claim.

12. General terms

This Agreement is governed by the laws of the State of North Carolina, United States.

This Agreement and any approved SOWs, invoices, or written change orders form the complete agreement for the services described and replace prior verbal understandings on those subjects.

Changes must be in writing. Electronic signatures and PDF copies are acceptable.

DESIGNER

CLIENT

Brandon Fonville

Authorized signer

Date: _____

Date: _____